RAMBAM'S LAWS OF ETHICS - HILCHOT DEOT

Is Self-Denial Holy? Jealousy, Desire & Enjoying This World

Hilchot Deot Ch. 2-3

Sefer: Mishneh Torah, Hilchot Deot (Rambam's Laws of Ethics) **Chapter:** 2, Halacha 7, and Chapter 3 (complete) **Shiur:** Part 4 of the seven-part series, given by Dayan Daniel Kada on Zoom and Facebook, Tuesday 17 November 2020 **Dedication:** Le'ilui nishmat Yaakov ben Avraham HaKohen

These notes are based on an automatic transcript of the recording.

Recap: Silence and Identity

Last week was about silence. For the Rambam and the Hachamim, silence is a virtue. People who are comfortable with silence are usually comfortable with their own identity, and people who are not comfortable with their identity will usually not find silence attractive. In practice:

- Don't speak just for the sake of speaking.
- Let people finish before responding.
- Teach with brevity and rich content.
- Be transparent: not "one with the mouth and one with the heart," but **תוכו כברו**, inside like outside.

Tonight finishes Chapter 2, continuing the idea of being comfortable in one's own identity. Then the shiur moves to Chapter 3, a new topic: **how we engage with the world around us.**

Part 1: Neither Jester nor Mourner (Chapter 2, Halacha 7)

A person should not be a jester and a mocker, **לא יהא אדם בעל שחוק ומהתל, ולא עצב ואונן, אלא שמח**, nor sad and mournful, but happy.

- **The *ba'al sechok*, the cynic.** This is the person who finds a joke in everything. A depressed person isolates himself from the world because he is so focused inward. The cynic isolates himself in the opposite way: **one way to isolate yourself from the world is to laugh at it.** As the Rabbi put it, one cynical laugh can destroy years of building. You can learn from someone for years, and one cynical remark about the person or the teaching undoes it.
- **Too much laughter and light-headedness lead to promiscuity.** Laughter has its place, in the right amounts. The goal is to greet everyone with a cheerful face.

The sour face is a pit in the public domain

The Talmud discusses at length the damages for digging a pit in a public place. One of the rabbis said that someone who walks around in public with a miserable face is a **pit in the public**

domain. There is no difference between a physical pit people fall into and an emotional one: everyone who sees you becomes sour as well. That is also damage, just of a different kind.

Outward actions shape the inner self

"This is easier said than done. Sometimes it's difficult to be happy." But at the very least, **put on a happy face outside.**

	In the previous halacha (*genevat da'at*)	Here (working on yourself)
Putting on a show	**Forbidden.** Don't pretend to want someone for Shabbat when you know they're away	**Encouraged.** Smile even when you don't feel it
Why	It deceives other people	**Outer actions arouse the inner self.** You avoid making others sour, and in time it changes you too

Simcha is the natural state (Hilchot Lulav 8:15)

At the end of Hilchot Shofar, Sukkah and Lulav, the Rambam writes:

השמחה שישמח אדם בעשיית המצוה ובאהבת האל שצוה בהן עבודה גדולה היא, וכל המונע עצמו משמחה זו
The joy a person feels in doing a mitzvah, and in love of God who commanded it, **ראוי ליפרע ממנו**
.is a great service. Whoever *withholds himself* from this joy deserves to be punished

The source is **David and Michal**. Michal, a princess and daughter of a king, watched her husband King David dancing wildly before the Ark and told him he had behaved like one of the common people. David answered that he would lower his honour even further, because the real honour is to be joyful before God. The Rambam says that anyone who stands on his own dignity in such moments "is a sinner and a fool." There is no personal honour before the King.

The Rabbi pointed to the wording **המונע עצמו**: one who *withholds himself.* For the Rambam, happiness is the natural default of a human being. To be unhappy, something must be withholding it from you. "If you just *be*, and stop being extreme on either side, a person's natural state is simcha." The Rabbi acknowledged that many people today struggle with mental health, and this is an aspiration rather than something simple.

Money: neither panic nor laziness

ולא יהיה בעל נפש רחבה ונבהל לממון, ולא עצל ובטל ממלאכה, אלא בעל עין טובה וממעט בעסק ועוסק
He should not be grasping and frantic for money, nor lazy **בתורה, ואותו מעט שהוא חלקו ישמח בו**
and idle from work, but generous of eye: limiting business, occupied with Torah, and happy with
.the little that is his portion

The Chafetz Chaim's shop. About a hundred years ago in Radin, the Chafetz Chaim (Rabbi Yisrael Meir HaKohen), true to the rabbinic tradition, had a job. He opened his shop after Shacharit and closed it as soon as he had enough for the day's needs. The Rabbi guessed that the whole town made sure to shop there early so he could get back to learning. This is not practical today, and the Rabbi was not suggesting copying it. The point is the aim: work and earn a *parnasah*, but don't make your goal amassing wealth so that your great-grandchildren are financially secure. "Your children and grandchildren can worry about themselves." There comes a point to step back and dedicate yourself to more important things.

Part 2: Jealousy, Lust and Honour Take a Person Out of the World

ולא יהא בעל קטטה, ולא בעל קנאה ולא בעל תאוה ולא רודף אחר הכבוד. כבר אמרו חכמים הקנאה והתאוה והכבוד מוציאין את האדם מן העולם
He should not be quarrelsome, nor jealous, nor lustful, nor a pursuer of honour. The Sages said: jealousy, lust and honour take a person out of the world.

Don't be confrontational. If a comment can be read two ways, don't take it the wrong way.

Jealousy (*kin'ah*)

- **We are only jealous of those we share a trait with.** A doctor envies another doctor, not an accountant; a lawyer envies a lawyer. ("And rabbis, of course, don't get jealous.")
- **The dog test.** You may envy your neighbour for owning a beautiful dog, but nobody envies *the dog*. If someone said he would love to have the dog's existence, we would say he has an identity crisis. Even if animals arguably have a simpler, better life, it has no relevance to me, because I'm a human.
- **The ideal:** another person's life should be as irrelevant to my identity as the dog's. "That's another identity. What I have is what I need." Jealousy comes from not recognising your own identity.
- **Kohelet 4:4: כי היא קנאת איש מרעהו**. Shlomo HaMelech saw all the toil and economies of the world, and it all comes from one person's envy of another.

  קנאת סופרים תרבה חכמה: rivalry among scholars increases wisdom. ("That rabbi wrote a book, I'll write a book.") Such drives are useful for human progress, but they are primal drives. Live by your own yardstick, not someone else's.

This is how the halacha continues last week's: **silence is easy only for those content with their identity, and so is freedom from jealousy.**

Lust (*ta'avah*)

People who always want more are never happy with what they have, because they are looking at the world around them. When you think "I need that," ask whether your identity really needs it. The word **חלק** means a *portion*, a part of something. Hashem gave you a role in this world: "Do you think I would give you this role without giving you everything you need to fulfil it?"

Honour (*kavod*)

Needing *kavod* means looking to others to make yourself valuable. If you approve of your own identity, you don't need their approval.

Drive	What it really reveals
jealousy – **קנאה**	You don't recognise your own identity
lust – **תאוה**	You aren't happy with your own *chelek*
honour – **כבוד**	You need others to give you your standing

All three come down to the same thing: **not being content with who you are.** That is why they "cripple" a life. And again, "these things take a lifetime to change."

The rule of the middle

כללו של דבר ילך במדת בינונית שבכל דעה ודעה עד שיהיו כל דעותיו מכוונות באמצעית... פלס מעגל רגלך וכל דרכיך יכונו The general rule: walk in the middle measure of every trait until all of them are aligned to the centre... "Balance the path of your feet, and all your ways will be established" (Mishlei 4:26).

From the class: someone asked whether you should respond when accused of something untrue. The Rabbi said the Rambam deals with this explicitly in Chapter 7, the last chapter.

Part 3: Withdrawing from the World Is a Sin (Chapter 3, Halacha 1)

Having heard how destructive jealousy and lust are, a person might decide to run to the other extreme:

שמא יאמר אדם... אפרוש מהן ביותר ואתרחק לצד האחרון, עד שלא יאכל בשר ולא ישתה יין ולא ישא אשה ולא ישב בדירה נאה ולא ילבש מלבוש נאה אלא השק והצמר הקשה... גם זה דרך רעה היא ואסור לילך בה

Perhaps a person will say: I will withdraw to the other extreme. I won't eat meat, drink wine, marry, live in a nice home or wear nice clothes, only sackcloth and coarse wool... This too is a bad path, and it is forbidden to walk in it.

- **Notice the wording.** The Rambam doesn't say "bad clothes"; he says *not nice* clothes. Even deciding to dress merely ordinarily as a religious statement is wrong. It is fine to wear nice clothes, live in a nice house and eat good food.
- **This is halacha.** As the Rabbi said in the first shiur, these are halachot as binding as any ritual mitzvah. Same Rambam, same *assur* and *mutar*.
- **One who goes this way is called a sinner.** Of the Nazir it says **וכפר עליו מאשר חטא על הנפש**, he must atone for sinning against his soul (Bamidbar 6:11). If he needs atonement for abstaining from wine alone, how much more so someone who abstains from everything. "You will need atonement for what you thought was your atonement."

  דייך מה שאסרה תורה: isn't it enough what the Torah forbade, that you forbid yourself more? Don't pile on vows and oaths to be extra religious.
- **Constant fasting is not the right path.**

  אל תהי צדיק הרבה: Do not be overly righteous... why should you destroy yourself?" (Kohelet 7:16).

Why does the Rambam mention Christian priests?

In the original, uncensored text, the Rambam compares these ascetics to **Christian priests**. Why mention them? One person in the class suggested it's because they don't marry. The Rabbi offered a broader historical reading:

	Rambam (12th century)	Ashkenazi Rishonim (12th–14th centuries)
Where	Spain and the Islamic world	Germany, France, England
Surrounding culture	Muslim	Christian
Ideal of piety	Engagement with the world, for the right purpose	Strong ascetic tendencies, e.g. Rabbi Yehudah HaChasid's *Sefer Chasidim* and the *Rokeach* (with its long lists of fasts for past sins: "you might get nightmares reading it")

The Rabbi said he was "almost sure" this is a direct critique of contemporaries who promoted self-affliction as the path to atonement. Those ideas grew up under the surrounding Christian culture. "We often look at our Torah through the society around us without realising it." He compared it to an earlier shiur on reward and punishment, which we tend to picture as coins piling up in a bank account. Self-affliction is **not** how you get *kaparah*.

Enjoying the world is not a concession

People often assume Hachamim should live in modest houses and wear scruffy clothes. "For the Rambam, this is absolutely wrong." That week's parashah, Toldot, shows the opposite:

- **Yitzchak** hands over leadership and wants to bless with a full heart, so he asks for a feast: **two** young goats, a banquet rather than a light supper. The spiritual *berachah* comes from a physical act of eating.
- **Yaakov** gives his beloved son not a Shas or a shelf of books, but a beautiful coloured coat. "He's a 17-year-old. Let him enjoy himself."
- **Yerushalmi (end of Kiddushin):** a person will have to give an account for every fruit he saw, could have eaten, and didn't. One of the Sages would save money to buy new fruits for this reason.

Fasting is for someone who has done a terrible sin and has no other way to relate to it. "The real good thing is wisdom: learn more, understand more, connect."

Part 4: Engage, but for the Right Purpose (Chapter 3, Halachot 2–3)

"If you've listened until now, don't leave now, or you'll get the wrong impression." Halacha 2 has to go with Halacha 1:

A person must direct his heart and **צריך האדם שיכוון לבו וכל מעשיו כולם לידע את השם ברוך הוא בלבד** all his actions solely to knowing God.

Activity	The wrong aim	The right aim
Business	A bigger number in the bank account to smile at	Providing for food, the mortgage and the family
Eating	Whatever is sweet and gives momentary pleasure ("like a dog or a donkey")	What is healthy, even if bitter. The Rabbi remembered cod liver oil every night as a child
Marriage and children	Help in the business, or *chutra lemachei* (a staff in old age)	Children who may become wise and great in Israel, out of service of God
The gym	Muscles so people look at you	A healthy body to pray, learn and do *chesed*
Health	A long life to spend more time at the cinema	Strength to serve Hashem

The Rambam said 800 years ago what dieticians tell us now. He also gives humoral advice (someone with a "hot temperament" should avoid meat and honey). The Rabbi said he didn't know how true that is medically today. And he was sure that if the Rambam were alive today he would tell us to exercise at least weekly.

"So that the soul is clear to know God"

שיהיה גופו שלם וחזק כדי שתהיה נפשו ישרה לדעת את ה', שאי אפשר שיבין וישכיל בחכמות והוא רעב וחולה או אחד מאיבריו כואב His body should be whole and strong, so that his soul is fit to know God; for one cannot understand and grasp wisdom while hungry, ill or in pain.

If you're starving, you can't think deeply. If you're worried about paying bills at the end of the month, you can't give the text your full focus. That is why you need to earn, eat and look after yourself: **to have a free mind.**

- **The Avot were very wealthy.** Avraham was **כבד מאד** ("very heavy") with cattle, silver and gold. Yitzchak reaped **מאה שערים**, a hundredfold. Yaakov too. They were blessed with wealth so they could serve Hashem free of financial worry.

עניות מעבירה את האדם על דעתו ועל דעת קונו: poverty turns a person from his own mind and the mind of his Creator (Eruvin 41b).

Even sleep is service of God

נמצא המהלך בדרך זו כל ימיו עובד את ה' תמיד, אפילו בשעה שנושא ונותן ואפילו בשעה שבועל... ואפילו בשעה שהוא ישן, Whoever lives this way serves Hashem constantly, even while doing business, even during relations... even while asleep.

וכל מעשיך יהיו לשם שמים: let all your deeds be for the sake of Heaven (Avot 2:12).

בכל דרכיך דעהו והוא יישר ארחתיך: in all your ways know Him, and He will straighten your paths (Mishlei 3:6).

- **The Shulchan Aruch (Orach Chaim 231)** codifies this. Eating, drinking, walking, sitting, sleeping, relations and conversation should all be for the service of the Creator. Even if one is hungry or thirsty, eating purely for pleasure is not praiseworthy.

The practical test. If you really ate to live, you would never drink a can of Coca-Cola. ("Maybe I'm exaggerating a bit. A can here and there isn't that bad.") Eating late at night when you know you've had enough is the opposite. Next week the Rambam will say that overeating is one of the greatest causes of illness.

A realistic *kavanah*

"I don't expect anyone to go home and think at their next meal, 'I'm having this only to serve God.'" A simple thought is enough:

- *I'm eating because I need to live, and without it I can't pray, learn or help others.*
- *I'm going to sleep so I can serve God tomorrow.*
- *I'm earning to look after my family, as God commanded me.*

Two people can do exactly the same things all day with two different motives, and they are two totally different lives.

Questions from the Class

- **What about people who lived with only a bed and a candle?** If you don't have money, you make do. But the Rambam surely lived in a decent home. His brother David supported him for years and drowned at sea. The Rambam wrote in a letter that for years afterwards he could not get over it and was constantly weeping. "This is the same Rambam who tells us not to be depressed. This is the aspiration." People who lived extremely simply probably feared that caring about clothes or "the tiles in my toilet" would pull them away from serving Hashem. Some people can't hold the balance, so they go to an extreme. As the Ra'avad said, it is easier to fast a whole day than to stop halfway through a delicious banquet.
- **What about Avot 6:4, "bread with salt... sleep on the ground"?** (Daniel) The Mishnah means you must be *ready* to live that way for Torah, if necessary. It is not the aspiration. "The Rambam absolutely does not hold that the less you enjoy this world, the more you get in the next."
- **Isn't poverty the norm in Jewish history?** (Ronnie) The Rambam doesn't exclude the poor. It is simply harder to focus on wisdom with financial burdens on your head, as the Gemara already says.
- **Doesn't tradition tell us to blend in and not attract the evil eye?** (Tommy) "100%." Yaakov told his sons to go down to Egypt for food even though they had it, so as not to stand out. Don't be ostentatious with fur coats and gold chains. A nice, decent house, car, food and drink doesn't contradict this.
- **The *naval bi-reshut ha-Torah*.** (Flora) Ramban at the start of Kedoshim describes a "scoundrel with the Torah's permission," who keeps the letter of the law while indulging endlessly. The Rabbi agreed this is the same idea: pursuing pleasure for its own sake, even permitted pleasure, is wrong. It all comes back to balance.

All the recordings were on Facebook, and the link was posted in the chat. No Facebook account is needed to listen.

Summary

1. **End of Chapter 2:** neither cynic nor mourner. Smile, because outward actions shape the inner self. Simcha is the natural state; whoever withholds it from himself is to blame.
2. **Money:** neither frantic nor lazy. Be happy with your *chelek*.
3. **Jealousy, lust and honour** take a person out of the world, because each shows discomfort with one's own identity.
4. **Chapter 3:** withdrawing from the world through self-denial, constant fasting or deliberately plain living is **forbidden**, a sin requiring atonement. The Rabbi read the "Christian priests" reference as a critique of ascetic piety absorbed from the surrounding culture.
5. **Engage fully, for the right purpose:** a healthy body and a free mind so the soul can know Hashem. Then even business, eating and sleep become service of God.

Coming Up

- **Next week:** Chapter 4, **Rambam's Diet.** "If you listen to everything I tell you in this chapter, you will never become ill. Free medical advice from a rabbi!"
- **Tuesday 1 December 2020:** a conversation with Rabbi Dr Joshua Berman on archaeology and Torah.

Watch or listen to this shiur: youtu.be/8ZQnkKmpQAk · More shiurim: rabbikada.com